native faith systems are not fully bound by scripture and have evolved as much through custom, practice and context flummoxed the Christian European coloniser just as much as it seems to confound contemporary Indian institutions, including the judiciary. It bears noting that this colonialised understanding of Indic faith systems forms the bedrock of the eternal project of ‘reform’ of the ‘Hindu religion’ and society in ‘independent’ Bharat.

Coming to the second issue of whether Hinduism is a ‘religion’ or a way of life, the debate invariably ends up stoking emotions for several reasons. The adherents of Indic faith systems are concerned, and rightly so, that the treatment of Hinduism as ‘a way of life’ and not a ‘religion’ by the Indian State might deprive them of their fundamental religious freedoms under the Constitution that are guaranteed to the followers of other religions. At the same time, they do not want ‘Sanatana Dharma’ or ‘Dharma’ to be equated with the Christian or Islamic idea of ‘religion’, again rightly so, since their OETs are very different. Nor do they want to be told that the ‘Hindu religion’ is essentially a Christian colonial construct because they understand that by calling it a colonial construct, some call into question the very precolonial existence of Dharmic belief systems and the notion of Dharmic oneness underlying the various Hindu sampradayas. There is more than an element of truth in these strands, each of which warrants unpacking.

First, it is important to distinguish between (*a*) the need for legal/constitutional approximation of Indic faith systems as ‘religion’ to ensure the enjoyment of fundamental freedoms and (*b*) OET-based differences between Indic faith systems and the coloniser’s religion. Interestingly, this brings out the coloniality inherent in the mechanical application of the concept of ‘religion’ as well as the use of the word ‘religion’ in contemporary legal and constitutional framework, both domestic and international. Whether this indicates the acceptance of the colonial worldview by the framers of the Constitution, again, will be discussed in the sequel to this book; however, what is evident is the problem underlying the use of colonial linguistics and the connotations they carry when extended to Indic OET systems. Therefore, the existence of this problem must be acknowledged and a decolonial approach to it must be employed.

Second, in so far as OET is concerned, the adherents of Indic OET systems are justified in taking the position that their OETs are vastly